

## 24SMCV01122 24SMCV01122

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-17

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

17, 2026

CASE NUMBER

24SMCV01122

MOTION

Motion

to Deem Admitted

MOVING PARTY

Plaintiff

California Lawyers Group LLP

OPPOSING PARTY

none

## MOTION

This case arises from a dispute concerning an attorney contingency fee.

On March 11, 2024, Plaintiff California Lawyers Group, LLP (“Plaintiff”) filed suit against Defendants Mahavir Mehta; Activor Corporation; Actiogen Corp; Chanda Zaveri; Chanda C. Bhuwalka; and Chanda, LLC (“Defendants”) alleging ten causes of action as follows:

1.

Breach Of Contract;

2.

Quantum Meruit;

3.

Reasonable Value Of Services;

4.

Money Had And Received;

5.

Conversion;

6.

Tortious Interference With Contractual Relations;

7.

Aiding And Abetting;

8.

Declaratory Relief;

9.

Equitable Lien; and

10.

Constructive Trust.

Plaintiff now moves for an order  
deeming admitted the matters stated in its first set of Requests for Admission  
("RFA") propounded to Defendant Mehta.  
The motion is unopposed.

#### ANALYSIS

Pursuant to Code of  
Civil Procedure section 2033.280, subdivision (a), "[i]f a party to whom requests  
or admission are directed fails to serve a timely response . . . [t]he party to whom the requests for  
admission are directed waives any objection to the requests, including one  
based on privilege or on the protection for work product[.]" (Code Civ.  
Proc., § 2033.280, subd. (a).)

Where  
a party fails to respond to requests for admissions, the propounding party may  
move for an order that the genuineness of any documents and the truth of any  
matters specified in the requests be deemed admitted, as well as for a monetary  
sanction.¿ (Code Civ. Proc., § 2033.280, subd. (b).)

The court shall make this order, unless it finds that  
the party to whom the requests for admission have been directed has served,  
before the hearing on the motion, a proposed response to the requests for  
admission that is in substantial compliance with Section 2033.220. It is  
mandatory that the court impose a monetary sanction under Chapter 7 (commencing  
with Section 2023.010) on the party or attorney, or both, whose failure to  
serve a timely response to requests for admission necessitated this motion.

(Code Civ. Proc., § 2033.280, subd. (c).)

I.

#### Deem Admitted

Plaintiff electronically served Mehta's  
counsel with the RFA on May 12, 2026.  
(Brown Decl. ¶ 7 and Ex. A-B.) Mehta's  
responses were due June 15, 2026. (Brown  
Decl.¶ 11.) No responses were

received by that date. (Brown Decl. ¶ 12.) On June 17, 2026, counsel for Plaintiff reached out to counsel for Mehta in an attempt to resolve the matter. Mehta's counsel responded, and Plaintiff agreed to a 1-week extension to facilitate Mehta providing verified, substantive responses to the RFA. (Brown Decl. ¶¶ 13-15.) As of July 15, 2026, when Plaintiff's counsel signed the declaration in support of the motion, no such responses had been received. (Brown Decl. ¶ 19.)

However, as explained in the attorney Declaration of Daniel A. Fonda filed on August 13, 2026 in connection with Mehta's ex parte application for relief from default, Fonda was engaged only for a limited scope representation of Mehta, that did not include general discovery practice. (See Fonda Decl. ¶ 2 and Ex. A thereto; see also Notice of Limited Scope Representation filed May 15, 2025 [requiring all service be effectuated on both Fonda and Mehta directly at the address provided].)

As such, service of the RFA on Fonda did not effectuate service on Mehta. Moreover, the Court finds that the Motion was not served on Mehta. Therefore, the Court denies Plaintiff's Motion as procedurally defective.

II.

Sanctions

Plaintiff also seeks sanctions against Mehta in the amount of \$3,960, representing six and a half (6.5) hours of time incurred preparing the instant motion at an hourly rate of \$600, plus the \$60 filing fee for the motion. (Brown Decl. ¶ 22.)

However, because the Court denies Plaintiff's request to deem the matters admitted, due to lack of proper service, the Court similarly denies Plaintiff's request for sanctions.

CONCLUSION AND ORDER

Because neither the RFA nor the Motion was not properly served on Mehta, the Court denies Plaintiff's

motion in its entirety.

Plaintiff shall provide notice  
of this ruling and file the notice with a proof of service forthwith.

DATED: August 17, 2026 \_\_\_\_\_/s/\_\_\_\_\_

Michael E. Whitaker

Judge of the Superior Court